

OFFICE OF THE COMMISSIONER FOR PERSONAL DATA PROTECTION

DECISION

Complaint regarding the Statistical Processing Methods of the scores of candidates who participated in the Written Examinations 2019 for Registration and Ranking on the Lists of Appointees

Based on the duties and powers conferred upon me by Article 57(1)(f) of Regulation (EU) 2016/679 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter referred to as the "Regulation"), I examined a complaint submitted to my Office regarding the processing of personal data during the application of statistical processing methods of the scores of candidates who participated in the written examinations 2019 for registration and ranking on the lists of appointees.

Based on the investigation, I found a violation of the Regulation and the Law on the Protection of Natural Persons Against the Processing of Personal Data and the Free Movement of Such Data of 2018, Law No. 125(I)/2018, by the Examinations Service (hereinafter referred to as the "Service") of the Directorate of Higher Education of the Ministry of Education, Sports and Youth (hereinafter referred to as the "Ministry").

A.

2. The complaint requests that the use of personal data, during the processing of the results of the written examinations for registration and ranking on the lists of appointees of the New Appointment System in Education (hereinafter referred to as the "Examinations"), be investigated, which form the index that reflects the degree of difficulty of the 2019 Examination in relation to the degree of difficulty of the corresponding Examination of 2017, that is, the Examination which serves as the reference point.

2.1. Additionally, the complaint presents other elements, such as the statistical processing methods used during the processing of the results of the Examinations, comments regarding the scoring system, positions which, as stated, indicate the unreliability of the results, as well as the position of the complainant that the necessity of the statistical processing of the scores of the Examinations should be re-evaluated.

Positions of the Examinations Service

The Service, in a letter dated December 27, 2021, stated among other things:

3. On September 1, 2021, I sent a letter to the Service, raising, among other things, questions regarding the role of the Service, the role of the Educational Service Committee, and the role of the Tripartite Supervisory Body, the legal basis for the processing, the conduct of an impact assessment, and the required prior consultation with my Office. Furthermore, questions were raised regarding the existence of a processing contract with the contractor company that undertook the statistical processing, the terms of reference, instructions and/or guidelines given to it, as well as questions concerning the processing methods used.

3.1. I note that the aforementioned letter was communicated to the Educational Service Committee, but I did not receive any official response.

4. Among other things, the following:

4.1. The conduct of the Examinations is provided for in the Public Educational Service Law of 1969, Law No. 10/1969, as amended. The application of statistical processing on the scores of candidates participating in the Examinations is provided for in the Written Examinations for Registration and Ranking on the Lists of Appointees Regulations of 2017 and in the Amendments to the Written Examinations for Registration and Ranking on the Lists of Appointees Regulations of 2019, which were issued under Article 76 of Law 10/1969. Specifically, the application of statistical processing is

provided based on the relevant amendments made in 2019 to Regulations 4 and 8 of the aforementioned Regulations of 2017.

4.2. There was no consultation with my Office, as the application of statistical processing, within the framework of the Examinations, does not involve the processing of personal data. The data provided by the Service for the application of statistical processing is characterized by pseudocode and does not disclose personal data.

4.3. The Ministry conducted an "impact assessment" ("impact analysis questionnaire") both during the submission to the House of Representatives of the Draft Regulations for the Regulations of 2017 and during the submission of the Draft Regulations for the Amendments of 2019. The aforementioned "impact assessments" were attached to the said letter to my Office.

4.4. The following methods for the application of statistical processing were used:

- 4.4.1. common persons method,
- 4.4.2. propensity score matching,
- 4.4.3. pseudo anchor method,
- 4.4.4. Angoff standard setting, and
- 4.4.5. 3DC standard setting.

During the 2019 Examinations, the contractor company, namely CITO, used

On August 30, 2022, I received a response from the Service, in which it was stated that for the implementation of the methods, no personal data was used, but only pseudocode. Attached to the letter is a copy of the agreement with the contracting company.

4.5. The role of the Service and the role of the Tripartite Supervisory Body is defined in the Regulations on Written Examinations for Registration and Classification on the Lists of Appointable of 2017 and 2019. Additionally, according to these Regulations, the results of the respective Examinations are subject to the approval of the Minister of Education, Sports, and Youth, and the Tripartite Supervisory Body.

5. Despite the fact that in the letter from the Service, dated December 27, 2021, not all questions from my office's letter dated September 1, 2021, were answered, I deemed it necessary to focus on the essence of the processing being carried out, in order to duly ensure its legality. Therefore, in my letter dated June 1, 2022, I requested that the Service enter into a processing assignment contract with the contracting company, as provided for in Article 28 of the Regulation, and conduct an impact assessment, as provided for in Article 35 of the Regulation.

6. The following was mentioned:

6.1. Given that the contracting company, which undertook the implementation of the statistical processing of the scores of candidates who participated in the Examinations in the years 2019 and 2021, has already completed its work based on a relevant contract, it is not feasible to prepare a "new processing assignment contract with it" retroactively. The contracting company will not undertake the implementation of the statistical processing of the scores of candidates for the Examinations for the year 2023 or for future Examinations. In the future, the statistical processing of the scores of candidates in the Examinations will be carried out by the Service, which has been trained by the contracting company on how to implement the processing.

6.2. An impact assessment has been conducted, as requested in my letter dated June 1, 2022. As mentioned, this assessment constitutes an impact assessment of personal data for the process, generally, of the weighting of the Examinations, which are conducted biennially, in accordance with the relevant Legislation and the Regulations on Written Examinations for Registration and Classification on the Lists of Appointable of 2017 and 2019.

The impact assessment includes, among others, the following:

6.2.1. The processing concerns the use of personal data of candidates in the process of weighting the difficulty of the Examinations.

6.2.2. The data controller is designated as the "Ministry of Education, Sports, and Youth (ΥΠΑΝ) through the Directorate of Higher Education, through the Examinations Service (YE) (Head of YE: XXX)."

6.2.3. Those executing the processing are officials of the Service and/or other officials of ΥΠΑΝ (processing team and processing execution team).

6.2.4. The weighting of the difficulty of the written examinations is a process that includes five statistical methods of quantitative and qualitative nature.

6.2.5. The method of propensity score matching uses information such as the degree of the diploma (pass, very good, and excellent), additional academic qualifications (e.g., MA, PhD), and teaching experience of the candidates.

6.2.6. The other four methods are published on the Service's website (<https://diorisimoi.moec.gov.cy/index.php/el/>) and do not pertain to the impact assessment as they do not use personal data.

6.2.7. The data is provided by the Educational Service Commission. The transfer of the data will be done via USB, and all files will be locked with codes managed only by the aforementioned Commission and the Service. The data remains within Cyprus, for use/processing exclusively by the responsible officials of the Service, and is maintained solely within the systems of the Service.

6.2.8. The data will be stored, complying with all safeguards according to the Regulation. Subsequently, the data will be pseudonymized using a double coding system developed by officials of the Service and will be delivered to its team of officials, who will carry out the processing. The aim of this process is for the team executing the statistical... processing cannot link the data to the candidates,

6.2.9. for the determination of the necessity of conducting the impact assessment, it was a criterion that the relevant data is processed on a large scale, since the processing will involve the data of all candidates participating in the Examinations. It was also a criterion that the process includes sets of data that have been matched or combined, as the data is compared with data from participants in previous examination periods to determine the difficulty of the written exams from different examination periods. It is not a criterion that the process includes evaluation or grading,

6.2.10. regarding the legality of the processing, it is applicable that the data subject has consented to the processing of their personal data for one or more specific purposes, as candidates during the application for participation in the Examinations will be informed about the provision of their data by the Educational Service Commission and about the purpose of using this data, and subsequently their consent will be requested. It is also applicable that the processing is necessary for the performance of a task carried out in the public interest or in the exercise of public authority vested in the data controller, as the processing is part of a broader process of weighing the difficulty of the written exams and contributes to the optimization of the process according to existing literature,

6.2.11. reference is made to the technical and organizational security measures, such as for example the method of transferring data from the Educational Service Commission, the coding with a double coding process, the data storage process which will take place after the weighing of the written exams, the maintenance of backup copies, and the control of physical access,

the deletion of personal data (low risk).

the transmission of personal data (within and outside Europe) without the unlawful access to personal data (low risk),

the identification of data with the data subjects (low

6.2.12. the following risks have been identified:

6.2.12.1.

the insufficient information provided to data subjects regarding the processing of personal data involved in conducting this process (low risk),

6.2.12.2.

necessary security safeguards (low risk),

6.2.12.3.

6.2.12.4.

risk),

6.12.2.5.

7. On the special website of the Ministry, which pertains to the Examinations and which refers to the impact assessment conducted by the Service, there is the document "Methods of Statistical Processing of the Scores of Candidates who Participated in the Written Examinations 2019 for Registration and Ranking on the Lists of Appointable Candidates." This document records the statistical processing methods that are applied. As mentioned, it was practically impossible to utilize all weighting methods for all specialties due to practical difficulties. However, every effort was made to combine as many methods as possible for each specialty, so that there are multiple sources of information and to achieve minimization of error through triangulation of results.

The methods recorded in this document are:

7.1. the "common candidates" method, in which for each candidate who participated in the Examinations in 2017 and in the Examinations in 2019, the difference in their score was calculated separately,

7.2. propensity score matching method, in which the performance of candidates with the same profile in the Examinations in 2017 and in the Examinations in 2019 is compared. Additional information such as gender, degree classification (pass, merit, and distinction), additional academic qualifications (e.g., MA, PhD), teaching experience, etc., was used to create the profiles,

7.3. pseudo anchor method, in which any difference in the difficulty level of the exam papers from the Examinations in 2017 and the Examinations in 2019 can be attributed, primarily, to the difference in the overall difficulty level of the questions, which have not been characterized as common (i.e., questions from the Examinations in the years 2017 and 2019 that have similar characteristics, such as examining the same content, carrying the same number of points, having approximately the same level of difficulty, having the same presentation method, etc.),

7.4. Angoff standard setting method, in which a group of experts estimates the expected score of "novice" candidates on each of the questions of an examination paper and it is considered that the differences in the expected performance of a "novice" candidate in the two examination periods can be attributed to the different difficulty levels of each examination,

7.5. 3DC standard setting method, in which experts estimate the expected performance of "novice" candidates on groups of questions.

On April 5, 2023, I sent to the Service a preliminary Decision, as per Article 24(1) of the Regulation, since as the data controller it did not demonstrate

8.

I found that there is a prima facie violation:

(a)

that the processing was carried out in accordance with the Regulation,

(b)

of Article 28(1) of the Regulation, since no processor was used to carry out the processing, which would provide sufficient assurances for the implementation of appropriate technical and organizational measures, and

(c)

of Article 36(4) of the Regulation and Article 13(1) of Law 125(I)/2018, since no prior consultation was conducted with my Office before the establishment of the Regulations which include provisions for statistical processing.

8.1. Also, prior to the Decision regarding the potential imposition of an administrative fine, the Service was requested to submit within four weeks from the receipt of the preliminary Decision, the reasons and circumstances that should be taken into account in the context and for the purposes of imposing an administrative sanction, pursuant to Article 58(2) of the Regulation and Article 32(1) and (3) of Law 125(I)/2018.

9.

In the context of the right to a hearing provided for the reasons and circumstances that should be taken into account for the purposes of imposing an administrative sanction, pursuant to Article 58(2) of the Regulation and Article 32(1) and (3) of Law 125(I)/2018, and since the Service requested that the right to a hearing be satisfied orally, the Service on September 28, 2023, submitted the following positions:

9.1. The Service acknowledges that there was processing of the personal data of the candidates. However, at the material time, it considered that there was no transfer of personal data, because pseudonyms were used,

9.2. Due to the above position of the Service, no prior consultation was conducted with my Office. Furthermore, due to tight deadlines that had to be adhered to for the conduct of the Examinations, it would not have been feasible to conduct prior consultation with my Office,

9.3. Despite the fact that a personal data processing contract had not been signed with the contracting company, provisions for data protection are included in the initial agreement - contract of the Service with the contracting company.

I note that during the oral hearing, the Service submitted to my Office the specific terms of the agreement, as well as an excerpt from Part A "Instructions to Economic Operators," as well as Annex I "General Conditions of Contract" of the agreement with the contracting company.

9.3.1. In section 10.6. Handling of Data, of Part A Instructions to Economic Operators, of the agreement with the contracting company, the following text is stated:

"1. All data given to the Contractor should be handled with all due diligence, specifically regarding confidentiality. The data will consist (amongst others) of the personal data of the examinees and thus all steps should be taken by the Contractor in order to protect them and adhere to all relevant clauses of the REGULATION (EU) 2016/679 of the European Parliament and of the Council as of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation)."

9.3.2. In Article 7 - Compliance Obligations and Legal Liability, of the section Obligations of the contractor, of Annex I "General Conditions of Contract" of the agreement with the contracting company, the following text is included:

"2. In the case of Contracts relating to matters relevant to the processing of personal data, the Contractor warrants that it will respect and comply with all applicable laws and regulations on the protection of individuals with regard to the processing of personal data and that it will assume responsibility and will be able to prove compliance with such laws and regulations. In addition, it will ensure that its personnel and any subcontractors or affiliates and persons under its control will also respect and comply with these laws and regulations. (Relevant is EU Regulation 2016/679 of 27 April 2016 of the European Parliament and of the Council)."

9.4. Regarding the Examinations that will be conducted in November of the current year, the planned statistical processing will again be assigned to the contracting company. The Service also referred to in the expertise of the contracting company and assured that it will comply with all obligations provided by the Regulation and Law 125(I)/2018 as the data controller.

B.

10. According to Article 4 of the Regulation, personal data is interpreted as "any information relating to an identified or identifiable natural person ('data subject'); an identifiable natural person is one who can

be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person."

By virtue of the same article, processing is defined as "any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction."

In the same article, the data controller is defined as "the natural or legal person, public authority, agency or other body which, alone or jointly with others, determines the purposes and means of the processing of personal data; where the purposes and means of such processing are determined by Union law or the law of a Member State, the data controller or the specific criteria for its designation may be provided for by Union law or the law of a Member State."

Legal Framework

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Also, as the processor in the same article, it is defined as "the natural or legal person, public authority, agency or other body which processes personal data on behalf of the data controller."

11. Regarding the assignment of processing personal data to a processor, Article 28 of the Regulation provides, among other things, that:

"1. When processing is to be carried out on behalf of a data controller, the data controller shall use only processors that provide sufficient guarantees to implement appropriate technical and organizational measures in such a manner that processing will meet the requirements of this Regulation and ensure the protection of the rights of the data subject.

2. The processor shall not engage another processor without prior specific or general written authorization of the data controller. In the case of a general written authorization, the processor shall inform the data controller of any intended changes concerning the addition or replacement of other processors, thereby giving the data controller the opportunity to object to such changes.

3. Processing by the processor shall be governed by a contract or other legal act under Union law or the law of a Member State, which binds the processor to the data controller and sets out the subject matter and duration of the processing, the nature and purpose of the processing, the type of personal data and categories of data subjects, and the obligations and rights of the data controller. The said contract or other legal act shall provide, in particular, that the processor:

a) processes the personal data only on documented instructions from the data controller, including with regard to the transfer of personal data to a third country or an international organization, unless required to do so by Union law or the law of the Member State to which the processor is subject; in such a case, the processor shall inform the data controller of that legal requirement before processing, unless that law prohibits such information on important grounds of public interest,

b) ensures that persons authorized to process the personal data have committed themselves to confidentiality or are under an appropriate statutory obligation of confidentiality,

c)

d) engages another processor,

e) takes into account the nature of the processing and assists the data controller by appropriate technical and organizational measures, insofar as this is possible, for the fulfillment of the data controller's obligation to implement appropriate measures under Article 32,

f)

g)

responds to requests for the exercise of the rights provided for in Chapter III of the data subject,

st) assists the data controller in ensuring compliance with the obligations arising from Articles 32 to 36, taking into account the nature of the processing and the information available to the processor,

z) at the choice of the data controller, deletes or returns all personal data to the data controller after the completion of the processing services and deletes existing copies, unless Union or Member State law requires the storage of personal data,

h) provides the data controller with any necessary information to demonstrate compliance with the obligations established in this article and allows and facilitates audits, including inspections, conducted by the data controller or by another auditor appointed by the data controller.

Regarding the first paragraph item h), the processor shall immediately inform the data controller if, in its opinion, any instruction violates this regulation or other Union or national data protection provisions.

12. Under Article 36(4) of the Regulation, it is provided that:

“36(4) Member States shall seek the opinion of the supervisory authority when drawing up proposals for legislative measures to be established by national parliaments or regulatory measures based on such legislative measures, which concern processing.”

13. Furthermore, Article 13 of Law 125(I)/2018 imposes that:

“13.-(1) Before the enactment of a law or regulations issued under law, which provide for a specific act or series of acts of processing, an impact assessment and prior consultation with the Commissioner is required.”

14. Under Article 58(2) of the Regulation, the Data Protection Commissioner has the following corrective powers:

“a) to issue warnings to the data controller or the processor that intended processing operations are likely to infringe provisions of this regulation,

b) to issue reprimands to the data controller or the processor when processing operations have infringed provisions of this regulation,

c) to order the data controller or the processor to comply with the data subject's requests for the exercise of their rights under this regulation,

d) to order the data controller or the processor to make processing operations compliant with the provisions of this regulation, if necessary, in a specific manner and within a specified time frame,

e) to impose a temporary or definitive limitation, including a ban on processing,

f) to order rectification or erasure of personal data or restriction of processing under Articles 16, 17, and 18 and to order notification of these actions to recipients to whom the personal data have been disclosed under Article 17 paragraph 2 and Article 19,

g) to withdraw certification or to order the certification body to withdraw a certificate issued under Articles 42 and 43 or to order the certification body not to issue certification, if the certification requirements are not met or are no longer met,

h) to impose an administrative fine under Article 83, in addition to or instead of the measures referred to in this paragraph, depending on the circumstances of each individual case,

i) to order the suspension of data flows to a recipient in a third country or to an international organization.”

Article 83 of the Regulation, regarding the general conditions for imposing administrative fines, provides that:

“1. Each supervisory authority shall ensure that the imposition of administrative fines in accordance with this article for infringements of this regulation referred to in paragraphs 4, 5, and 6 is effective, proportionate, and dissuasive for each individual case.

2. Administrative fines, depending on the circumstances of each individual case, may be imposed in addition to or instead of the measures referred to in Article 58 paragraph 2 points a) to h) and in Article

58 paragraph 2 point i). In deciding on the imposition of an administrative fine, as well as on the amount of the administrative fine for each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the relevant processing, as well as the number of data subjects affected by the infringement and the degree of damage suffered,

b) the intent or negligence that led to the infringement,

β)

γ)

any actions taken by the data controller or the processor to mitigate the damage suffered by the data subjects,

δ)

the degree of responsibility of the data controller or the processor, taking into account the technical and organizational measures they implement pursuant to Articles 25 and 32,

ε)

of the processor,

στ)

the breach and the limitation of its potential adverse effects,

ζ)

breach,

the categories of personal data affected by any relevant previous breaches of the data controller or the degree of cooperation with the supervisory authority for the rectification of the

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the adherence to approved codes of conduct in accordance with Article 40 or

the manner in which the supervisory authority was informed of the breach,

η)

in particular, whether and to what extent the data controller or the processor notified the breach,

θ)

in the event that measures referred to in Article 58(2) were previously ordered against the involved data controller or processor regarding the same subject, the compliance with those measures,

ι)

approved certification mechanisms in accordance with Article 42 and

ια)

any other aggravating or mitigating factor arising from the circumstances of the specific case, such as the financial benefits gained or damages avoided, directly or indirectly, from the breach.

3.

In the event that the data controller or the processor, for the same or for related processing operations, violates several provisions of this regulation, the total amount of the administrative fine shall not exceed the amount specified for the most serious violation.”

Regarding the imposition of an administrative fine, Article 32 of Law 125(I)/2018

16.

provides that:

Subject to the provisions of Article 83 of the Regulation, the Commissioner

“(1)

imposes an administrative fine.

(...)

(3)

An administrative fine imposed on a public authority or public body concerning non-profit activities shall not exceed two hundred thousand euros (€200,000).”

17.

amended, regarding the Examination Service, the following is stated:

In the Public Educational Service Law of 1969, Law 10/1969, as it stands

In this Law, unless a different meaning arises from the text,

“2.

‘Commission’ means the Educational Service Commission;

(...)

23.

a different meaning arises

‘Examination Service’ has the meaning attributed to this term in Article 2 of the Laws on the Conduct of the Pan-Cyprian Examinations of 2006 and 2007.”

For the purposes of this Part, unless a different meaning arises from the text,

Regarding the preparation of the list of eligible candidates, that is, the preparation of the list for

18.

which the Examinations are conducted, Article 28BB of Law 10/1969 provides, among other things, that:

“28BB.-(1) The lists of eligible candidates are prepared by registering in them the candidates, in order of priority and based on the following criteria-

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the grade of the first degree and its scoring, as provided

Success in a written examination and its scoring, as provided in the educational experience of the candidate and its scoring, as

(α)

paragraph (α) of subsection (3),

(β)

in paragraph (β) of subsection (3),

(γ)

the possession and the grade of additional academic qualifications that are relevant to the education or specialty of the candidate or the duties of the position and their scoring, as provided in paragraph (γ) of subsection (3),

(δ)

as provided in paragraph (δ) of subsection (3),

(ε)

the date and year of submission of the first degree submitted with the candidate's application and its scoring, as provided in paragraph (ε) of subsection (3),

(στ)

the service prior to obtaining the first degree, based on which the candidate seeks inclusion in the lists of eligible candidates, in the National Guard or the armed forces of a member state and its scoring, as provided in paragraph (στ) of subsection (3).

(...)

(3)

The scoring for each of the criteria provided in subsection (1) based on the weight of each as provided in subsection (2) is calculated as follows:

(...)

a candidate who is registered on a list of eligible candidates, if they wish

(vi)

to be registered on a list of eligible candidates, must submit an expression of interest and also submit an application along with the relevant fee for participation in a written examination:

Provided that the Commission posts on its official website the relevant expression of interest form and the application form for participation in a written examination;

(...)

(ix)

the Examination Service is responsible for the preparation of the examination papers, the conduct of the examinations, the extraction of the results, and their transmission to the Commission;

(...)

(5)

The Commission accepts applications or expressions of interest, as the case may be, for registration on the list of eligible candidates, from the date of commencement of the validity of the Public Educational Service (Amendment) (No. 2) Law of 2015."

19.

According to the Law on the Conduct of the Pan-Cyprian Examinations of 2006, Law 22(I)/2006, as amended, the Examination Service means "the service of the Ministry of Education and Culture which is responsible for conducting the Pan-Cyprian Examinations."

20. The Written Examination Regulations for Registration and Ranking on the Lists of Eligible Candidates of 2017, as amended, provide in the first and third reservations respectively of Regulation 4 that:

"It is understood that, for the registration and ranking of candidates on the lists of eligible candidates, a statistically processed score of at least 50% is required in each of the three (3) examination subjects during the same examination period:"

and that:

"It is further understood that, in the aforementioned branches/specialties, for the registration and ranking of candidates on the lists of eligible candidates, a statistically processed score of at least 50% is required in each of the individual knowledge subjects."

20.1. Furthermore, Regulation 8 provides that:

"For the purposes of a unified ranking of candidates participating in the written examinations in different examination periods, statistical processing is applied."

Examination periods

Reasoning

G.

21. I must emphasize that the investigation I am conducting concerns exclusively and solely issues of personal data protection. Therefore, based on the duties with which I am entrusted, I cannot investigate issues that concern, among other things, the reliability or otherwise of the results, the suitability of the statistical processing methods that were applied, the correctness of the scoring system, as well as whether the necessity of statistical processing should be examined.

22. Considering that, pursuant to Law 10/1969, the Service is responsible for "the preparation of examination papers, the conduct of examinations, the extraction of results, and their transmission to the Committee," I conclude that the Service is the data controller for the processing of personal data that takes place within the framework of the statistical processing of the examination results.

22.1. The above conclusion is not affected by the fact that the agreement with the contracting company was made between the latter and the Ministry.

23. On the website of the Educational Service Committee (ESC), which pertains to the application for registration on a list, namely on the list of appointees and/or on the list of eligible candidates, it is stated that:

"Together with the application, you MUST necessarily submit all the necessary certificates/evidential

documents as listed in the instructions of the form. You must submit both the originals and copies so that the relevant certification of the copies can be made by an ESC officer upon receipt of the ESC01X application at the ESC Office."

23.1. On this website, the necessary certificates/evidential documents that must accompany the application are recorded. Specifically, the following are mentioned: birth certificate, identity card or passport, high school diploma, degree(s), proof of studies, photocopy of the Study Guide of the educational institution where the applicant studied, full military status certificate type "A", certificate of a clean criminal record, certificate for educational experience, and certificate of technical experience (for trainers and technology teachers only). In addition to these, which are explained in detail on the relevant website, a recent original medical certificate must be submitted for applications for registration on special lists for persons with disabilities.

24. Based on the above, it follows that applicants must record their qualifications and relevant information, such as the degree grade, whether or not they hold additional academic qualifications (master's degrees, including doctoral degrees), and their teaching experience. They must also submit the relevant certificates/evidential documents to the Educational Service Committee themselves. By submitting these specific certificates/evidential documents, applicants receive, as provided, relevant scoring. It is, therefore, evident that fulfilling the above obligations is a necessary condition for registration on the list of eligible candidates and obtaining the relevant scoring.

25. The sole purpose of conducting the Examinations is to prepare the list of eligible candidates. For a candidate to be included in the list of eligible candidates, success in the Examinations is required. In each specialty, a list of eligible candidates is created, which includes successful candidates from various years. At specified intervals, the list of eligible candidates for each specialty is updated, with the addition of successful candidates from the new Examinations and/or with the differentiation of the scoring of qualifications and/or the scores of each successful candidate. Therefore, comparability of scores from Examinations of different years is required. As a result, as stated in Regulation 8 of the Written Examination Regulations for Registration and Ranking on the Lists of Eligible Candidates of 2017, as amended, statistical processing is applied for the purposes of unified ranking of candidates.

26. The methods applied include those that require the processing of personal data. Beyond the existence of a relevant legal basis since statistical processing is provided for in the relevant Regulations, I consider that the application of such methods does not go beyond, but rather falls within actions aimed at achieving the intended purpose, namely the ranking of candidates on the lists of eligible candidates. Moreover, the submission of the certificates/evidential documents was carried out by the candidates themselves, for their registration on the list of eligible candidates of the relevant specialty or for

****27.**** Their scoring. Therefore, I conclude that the application of the relevant statistical methods, which involve the processing of personal data, does not fall outside the framework of legality. Specifically, it includes the processing of data provided by the candidates themselves to the Educational Service Commission and/or data that arose from the Examination process.

****27.1.**** However, I must emphasize that the processing of personal data is not solely contingent upon the method of score trend matching, as mentioned in the impact assessment conducted by the Service. The processing of personal data also occurs through other statistical processing methods that were applied. A study of the document "Statistical Processing Methods of the Scores of Candidates who Participated in the Written Examinations in 2019 for Registration and Ranking on the Lists of Appointees" reveals that in the "common candidates" method, the total score obtained by each candidate in the Examinations in 2017 and 2019 is processed, while in the pseudo anchor method, the scores obtained by each candidate on specific questions in the Examinations in 2017 and 2019 are processed.

****28.**** As provided in Article 28 of the Regulation, the data controller "uses only processors that provide sufficient guarantees for the implementation of appropriate technical and organizational measures, in such a way that the processing meets the requirements of this Regulation and ensures

the protection of the rights of the data subject." The assigned processing is governed by a contract or other legal act and specifies "the subject matter and duration of the processing, the nature and purpose of the processing, the type of personal data and the categories of data subjects, and the obligations and rights of the data controller." Article 28(3) of the Regulation lists all the elements that must be included in the relevant contract. It is further understood that this contract must precede the communication of data from the data controller to the processor and/or any processing of such data by the processor.

****29.**** In this case, the Service assigned the company CITO the implementation of the statistical processing of the scores of candidates who participated in the Examinations in the years 2019 and 2021. Therefore, the contractor company CITO acts as the processor for the data processing in question.

****30.**** Pseudonymization, or as the Service referred to it, the use of pseudocodes, constitutes a measure for the security of personal data and does not change the nature of such data into non-personal data. That is, the personal data that have been pseudonymized continue to be classified as personal data.

****31.**** It follows, therefore, that the communication of data to the contractor company constitutes an act of processing and, as such, the Service's position that personal data are not communicated does not hold, since the data provided by it are characterized by pseudocodes, as stated in its letter dated December 27, 2021. I remind you that the Service, during the exercise of the right to be heard, on September 28, 2023, retracted the above position and acknowledged that there had been processing of the personal data of the candidates.

****32.**** Upon reviewing the copy of the agreement made between the Ministry and the contractor company, which was submitted to my Office with the letter from the Service dated December 27, 2021, it appears that this agreement does not constitute a processing assignment contract, as provided in Article 28(3).

of the Regulation. Therefore, there is no apparent reason why the Service, in its letter dated August 29, 2022, stated that it is not feasible to prepare, retroactively, a "new processing assignment contract" with the contracting company.

33. Despite the fact that a processing assignment contract had not been signed with the contracting company, as ultimately acknowledged by the Service, I recognize that the initial agreement - contract between the Service and the contracting company included provisions for data protection, as presented in paragraph 9.3.1. of this document, which were submitted to my Office in the context of exercising the right to be heard.

34. The absence of a signed assignment contract between the Service and the contracting company, as provided for in Article 28(3) of the Regulation, indicates that the Service, as the data controller, cannot prove that the processor, namely the contracting company, provided sufficient assurances for the implementation of appropriate technical and organizational measures, in such a way that the processing meets the requirements of the Regulation and ensures the protection of the rights of data subjects, as stipulated in Article 28(1) of the Regulation.

35. Furthermore, the absence of an assignment contract, as provided for in Article 28(3) of the Regulation, indicates that the Service cannot prove that the processing was carried out in accordance with the Regulation, as stipulated in Article 24(1) of the Regulation.

36. As indicated in Article 36(4) of the Regulation, there is an obligation for prior consultation with the Commissioner for Personal Data Protection when drafting proposals for legislative measures or regulatory measures based on such legislative measures, which concern processing. The same obligation is imposed by Article 13(1) of Law 125(I)/2018. The consultation must take place in such a way as to ensure that the planned processing complies with the Regulation and, in particular, to mitigate risks to data subjects.

37. Therefore, considering that the Regulations on Written Examinations for Registration and Ranking

on the Lists of Appointable Persons of 2017, as amended, provide for statistical processing for the purpose of a unified ranking of candidates, which requires the processing of personal data, the Service was obliged to carry out prior consultation with my Office before including the relevant provision.

38. It cannot be considered that the prior consultation is in any way related to the impact assessments ("impact analysis questionnaire") conducted by the Ministry both during the submission of the Draft Regulations to the House of Representatives for the 2017 Regulations and during the submission of the Draft Regulations for the Amending Regulations of 2019.

39. As analyzed in paragraph 30 of this document, the use of pseudonymization does not change the nature of the data. Therefore, I do not accept the position of the Service that there was no consultation with my Office because the application of statistical processing does not involve the handling of personal data. I remind that this position was mentioned in a letter from the Service, dated December 27, 2021, while, in the context of exercising the right to be heard, on September 28, 2023, the Service acknowledged the processing of personal data that was carried out.

40. Additionally, I do not accept the position of the Service that it would not have been feasible to conduct prior consultation with my Office due to the tight deadlines that had to be met. I believe that there was sufficient time for consultation, as the relevant amendments to Regulations 4 and 8 of the Regulations on Written Examinations for Registration and Ranking on the Lists of Appointable Persons of 2017 were published in the Government Gazette on July 30, 2019, that is, at least three months before the conduct of the Examinations, the grading of the answers, and the communication of the data to the contracting company.

41. Regarding the impact assessment conducted by the Service, following my indication, and sent to my Office on August 30, 2022, I find it appropriate to mention the following:

41.1. The assessment does not evaluate whether there is an impact based on the use of statistical methods, but is mainly dedicated to the collection, application of technical measures, and retention of data by the Service,

41.2. The role of data controller is held by the Service and not, as mentioned, by the "Ministry of Education, Sports and Youth (ΥΠΙΑΝ) through the Directorate of Higher Education, through the Examination Service (YE)".

(Head of Department: XXX)

41.3. The statement that the role of the data processor is performed by officials of the Service and/or other officials of the Ministry is not valid. The officials of the Service are part of the data controller and, in any case, perform processing under its supervision.

41.4. As analyzed in paragraph 27 of this document, the processing of personal data occurs not only through the application of the method of data matching but also through other methods that have been used.

41.5. Considering that statistical processing is provided for in the Regulations on Written Examinations for Registration and Ranking on the Lists of Eligible Candidates of 2017, as amended, the legal basis should be considered the legal obligation of the Service, namely Article 6(1)(c) of the Regulation, and not, as mentioned, the performance of a task carried out in the public interest or in the exercise of public authority vested in the data controller, namely Article 6(1)(e) of the Regulation. For the same reason, the consent of the candidates should not be considered as a legal basis, namely Article 6(1)(a) of the Regulation. Nevertheless, I emphasize that candidates should have full and transparent information regarding the processing of their data.

D.

42. Taking into account all the above elements, as they have been set forth, and based on the powers granted to me under Articles 33(5) and 57(1)(f) of the Regulation, since the data controller did not prove the absence of intent on the part of the Service, the categories of data that were processed, which did not comply with the Regulation, I find that there is a violation by the Examinations Service of

the Directorate of Higher Education of the Ministry of Education, Sports and Youth:

(a) that the processing was carried out in accordance with the Regulation,
(b) of Article 28(1) of the Regulation, since the processor did not provide sufficient assurances for the implementation of appropriate technical and organizational measures, and
(c) of Article 36(4) of the Regulation and Article 13(1) of Law 125(I)/2018, since there was no prior consultation with my Office before the establishment of the Regulations which include provisions for statistical processing.

43. Based on the provisions of Article 83 of the Regulation, regarding the conditions for the imposition of administrative fines, to the extent that they apply in this specific case, in determining the administrative fine, I took into account the following mitigating (a) - (c) and aggravating (d) factors:

(a) the adoption of technical measures, specifically pseudonymization, which the Service undertook before sending the personal data of the candidates to the contracting company,
(b) (c) special categories of data are included,
(d) the fact that the identification of the aforementioned violations arose after a complaint was submitted to my Office, and not after relevant communication and/or notification from the Service.

44. After considering and weighing:

(a) the provisions of Article 58(2) and Article 83 of the Regulation,
(b) the submissions made to me based on all existing correspondence,
(c)

I find that, under the circumstances, the imposition of an administrative fine is not justified.

45. Nevertheless, taking into account the aforementioned facts, the legal aspect on which this Decision is based, and the analysis as explained above, and exercising the powers granted to me by Article 58(2)(b) of the Regulation,

I have decided

in my judgment and in accordance with the above provisions, to address the Examinations Service of the Directorate of Higher Education of the Ministry of Education, Sports and Youth

A reprimand for the violation of Articles 28(1) and 24(1) of Regulation (EU) 2016/679,

and all the circumstances and factors that the complainant and the Service

the applicable legislative basis regarding the prescribed administrative sanctions

the aforementioned mitigating and aggravating factors,

A reprimand for the violation of Article 36(4) of Regulation (EU) 2016/679 and Article 13(1) of Law 125(I)/2018.

Irene Loizidou Nicolaidou

Commissioner for the Protection of Personal Data

December 5, 2023